	MEMORANDUM CIRCULAR	DOCUMENT NO. BJMP-DO-MC No. 038
	TOPIC **BJMP HELP DESKS**	ISSUE NO.
		REVISION NO. 0
	SUB-TOPIC **POLICY IN THE IMPLEMENTATION OF BJMP HELP DESKS FOR PERSONS DEPRIVED OF LIBERTY (PDL) AND THEIR IMMEDIATE FAMILIES**	EFFECTIVE DATE 26 APR 2018
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I. REFERENCES

1. The 1987 Constitution of the Republic of the Philippines;
2. Executive Order No. 292, otherwise known as the "Administrative Code of 1987";
3. Republic Act No. 7438, otherwise known as "An Act Defining Certain Rights of Person Arrested, Detained or Under Custodial Investigation as well as the Duties of the Arresting, Detaining and Investigating Officer, and Providing Penalties for Violation Thereof";
4. BJMP Manual Revised 2007 as Amended;
5. Presidential Directive on Facilitation of Welfare of the Persons Deprived of Liberty (PDL) during Visit at BJMP Jails in Camp Bagong Diwa, Bicutan, Taguig City on October 18, 2017;
6. Memorandum dated January 25, 2018 re: Establishment of Help Desks; and
7. Memorandum from JOSEPH B ENCABO, Assistant Secretary for Regional Concerns, Presidential Management Staff dated March 21, 2018 re: *"Assistance Process Flow for BJMP Inmates"*.

II. RATIONALE/BACKGROUND

The prime duty of the government is to serve and protect the people. This State policy is carried out, among others, by providing services to the people by the various agencies and offices of the Government. The Department of Social Welfare and Development, Department of Education, and Department of Health are the major agencies of the Government assisting its constituents for provision of foods, shelter, medical and education. The access to these services shall not only be extended to ordinary freemen but also to persons deprived of liberty (PDL) who are also less in life.

The Jail Bureau, as an agency of the Government in charge of public safety through the provision of humane safekeeping and development programs of PDL, admits to the lack of resources to provide the needs of its clienteles. Nonetheless, the National Government assures that services through BJMP Help Desks shall be accorded not only to PDL, but also to their immediate families, in aid of the promotion of their welfare.

III. PURPOSE

To provide guidelines in the availment of public or social services from other agencies or offices of the Government by the PDL and/or their immediate family members, through BJMP help desks.

Prepared by:	Reviewed by:	Approved by:
JO1 Allan Christian C Benitez Operations JNOR Noted by: **J/SSUPT BABY NOEL P MONTALVO** Director of Directorate for Operations	**J/CSUPT ALLAN S IRAL, CESE** Deputy Chief for Administration of the Jail Bureau/QMR	**J/DIR DEOGRACIAS C TAPAYAN, CESE** Chief, BJMP

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IV. OBJECTIVES

1. To provided PDL and/or their immediate family members access to the services of other agencies/offices of the Government;

2. To promote welfare of the PDL through assistance from other agencies/offices of the Government; and

3. To establish and sustain partnership with other agencies/offices of the government in providing assistance to PDL and/or their immediate family members.

V. SCOPE

This policy shall cover the National Headquarters, Regional Offices, Provincial Administrators' Offices, and all BJMP manned-jails.

VI. DEFINITION OF TERMS

Agency of the Government - refers to any of the various units of the Government, including a department, bureau, office, instrumentality, or government-owned or controlled corporations, or a local government or a distinct unit therein.

Assistance - refers to services, help or support from other agencies or offices of the Government, other than those already provided by the BJMP, such as medical, education, livelihood program/s and other form of assistance.

- **Non-Written Request for Assistance** – refers to an oral request for assistance of the requesting party directly brought by him/her before the Help Desk Officer.

- **Written Request for Assistance** - shall include printed or handwritten request for assistance by the PDL and/or his/her immediate family.

Immediate Family – as defined in R.A. 7438, shall include his or her spouse, fiancé or fiancée, parent or child, brother or sister, grandparent or grandchild, uncle or aunt, nephew or niece, and guardian or ward.

Local Agency - refers to a local government or a distinct unit therein.

National Agency - refers to a unit of the National Government.

National Government - refers to the entire machinery of the central government, as distinguished from the different forms of local governments.

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JO1 Allan Christian C Benitez Operations JNOR	U.P. LAW CENTER OFFICE of the NATIONAL ADMINISTRATIVE REGISTER Administrative Rules and Regulations APR 11 2018 RECEIVED BY:	
Noted by: **J/SSUPT BABY NOEL P MONTALVO** Director of Directorate for Operations	**J/CSUPT ALLAN S IRAL, CESE** Deputy Chief for Administration of the Jail Bureau/QMR	**J/DIR DEOGRACIAS C TAPAYAN, CESE** Chief, BJMP PS

Office - refers, within the framework of governmental organization, to any major functional unit of a department or bureau including regional offices. It may also refer to any position held or occupied by individual persons, whose functions are defined by law or regulation.

Persons Deprived of Liberty (PDL) - refers to the detainees and prisoners as defined in BJMP Manual Revised 2007 as Amended.

Requesting Party – either a PDL or any member of his/her immediate family.

VII. GENERAL GUIDELINES

1. The BJMP Help Desks shall be under the supervision and control of the Directorate for Inmates Welfare and Development and Inmates Welfare and Development Divisions/Sections in the Regional and Jail levels, as the case may be. The designated Help Desk Officer/s shall preferably be a personnel from such offices;

2. Assistance from other agencies/offices of the Government, such as medical, educational, livelihood, burial, shelter, transportation and others shall be extended to PDL and/or their immediate family members through the BJMP Help Desks;

3. All assistance sought by the requesting party shall be in writing addressed to the ***"President of the Republic of the Philippines"*** and shall be submitted to the Help Desks in BJMP-manned jails. Non-written request shall be brought directly before the Jail Help Desk Officer (JHDO);

4. All requests must be referred by the JHDO within three (3) working days from receipt to the concerned agency/office of the Government who can best address the concern/s raised. Assistance that is assessed as urgent should be referred immediately;

5. The Help Desk Officer/s (HDO) shall seek written reply on action taken/disposition within fifteen (15) working days from receipt of the referral by the concerned agency/office of the Government;

6. The HDO in the National, Regional, Provincial and Jail levels shall maintain, monitor and update the Database of Assistance *(Annex B)* , which includes among other details, the names of the requesting parties, the type of assistance sought, status, disposition and action taken of the office/agency; and

7. The HDO shall establish and sustain linkages/rapport with the concerned agencies of the Government in their respective levels especially with the designated focal persons.

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VIII. BJMP HELP DESKS

The existing BJMP Help Desks established pursuant to Memorandum on the Establishment of Help Desks is hereby reconstituted with the following designations and functions:

National Help Desk Officer (NHDO)

a. Maintain and update data base on assistance rendered/referred to other agencies;
b. Receive reports from the RHDO;
c. Submit consolidated monthly reports *(Annex B)* to the Presidential Management Staff (PMS);
d. Evaluate/assess and refer the request to subordinate Help Desk Officers, including those referred by the PMS;
e. Update the RHDO on the status/disposition of the request elevated at the national agency; and
f. Perform other task/s as directed by higher office.

Regional Help Desk Officer (RHDO)

a. Maintain and update data base on assistance rendered/referred to other agencies;
b. Receive reports from PHDO or from JHDO in the case of NCR jails;
c. Submit consolidated monthly reports to NHDO;
d. Evaluate/assess and refer the request to the subordinate HDO, if the request was referred/endorsed by the PMS;
e. Notify the NHDO on the referrals elevated from the regional agency/office to National Agency;
f. Monitor actions taken by the regional agencies/offices of the Government on the referrals;
g. Update the PHDO or JHDO on the status/disposition of the request;
h. Perform other task/s as directed by higher offices.

Provincial Help Desk Officer (PHDO)

a. Maintain and update data base on assistance rendered/referred to other agencies;
b. Receive report from JHDO;
c. Submit consolidated monthly report *(Annex B)* to RHDO;

d. Evaluate/assess and refer the request to the subordinate HDO, if request directly sought by the requesting party includes those referred by the PMS;
e. Monitor actions taken on the referrals by the provincial agencies/offices of the Government;
f. Notify the RHDO of the referrals elevated by the provincial agency/office to higher/highest office;
g. Update the JHDO on the status/disposition of the request referred to the regional level; and
h. Perform other task/s as directed by higher offices.

Jail Help Desk Officer (JHDO)

a. Evaluate/assess the request and conduct interview of the requesting party;
b. Refer the request to appropriate agencies/offices of the Government, if deemed necessary;
c. Act on the request referred by the higher HDO;
d. Inform in writing the requesting party on the status/disposition of the request;
e. Submit monthly report *(Annex B)* to PHDO or RHDO in the case of NCR jails; and
f. Perform other task/s as directed by higher offices.

IX. PROCESSING OF ASSISTANCE *(Annex C)*

1. The JHDO shall evaluate the assistance sought by the requesting party, whether or not such request can be addressed in the jail level, otherwise it shall be properly referred to other agencies/offices of the Government for their appropriate action using the Assessment/Referral Form *(Annex A)* with the written request attached therewith. The JHDO shall ensure that the aforementioned form is completely filled-up and the duplicate copy of which shall be retained in the jail.

2. All requests for assistance referred by the JHDO to other agencies/offices of the Government and its subsequent disposition shall be registered in the database using the prescribed format *(Annex B)*. All other requests which were resolved/addressed in the jail level shall be kept by the JHDO together with the filled-up Assessment/Referral Form for future reference.

3. If such request referred by the JHDO is further indorsed by the local agency/office to their higher office, the JHDO shall immediately inform the PHDO for jails outside Metro Manila or the RHDO for NCR of the status and the details therewith. The

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same procedure shall be observed by the RHDO and NHDO in case the request is elevated to a national agency;

4. All other requests for assistance which are directly sought by the requesting party in provincial, regional or national help desks, which, however, can be best addressed in the lower level, shall be indorsed to the jail, provincial or regional levels, as the case may be. The same procedure shall apply on a request directly sought by the requesting party before the PMS, if endorsed to any BJMP help desks;

5. The JHDO shall update/notify the requesting party through the fastest means of communication possible/available such as, but not limited to cellular phones, telephones or through electronic mail, on the status/disposition of the request and shall be put on record for inclusion in the subsequent submission of consolidated monthly reports;

6. The PHDO, RHDO and NHDO shall monitor the compliance of their subordinate HDO and shall submit monthly consolidated reports *(Annex B)* to their immediate supervising HDO except for the NHDO, whom shall submit the said reports to the Presidential Management Staff (PMS).

X. REPORTING SYSTEM

The BJMP-NHQ through its Help Desk Officer shall send reports to PMS Central Office every 5th of the month on help desk updates and reports on the assistance provided. The consolidated monthly reports of the RHDO shall be submitted to the NHDO not later than every 3rd day of the month while the reports of the JHDO and PHDO must reach the RHDO every 1st day of the month. Likewise, the Regional HD-TWG shall send reports to the National HD-TWG not later than a week, every after the scheduled quarterly meetings.

XI. HELP DESK TECHNICAL WORKING GROUPS (HD-TWGs)

The following are the composition of the National and Regional Help Desk Technical Working Groups:

Head Secretariat: Presidential Management Staff
Members: Bureau of Jail Management and Penology
Department of Social Welfare and Development
Department of Health
Department of Education
National Housing Authority
Other Agencies (as necessary)

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The Regional HD-TWG shall have the same composition with the National HD-TWG to be represented by the Regional PMS and the respective Regional Offices of the concerned agencies.

The HD-TWG shall meet quarterly for the necessary updates and reports on the different requests for assistance received by their respective offices. The Regional HD-TWG shall submit updated reports of the database regarding assistance, and a narrative document of the proceedings that arises during the meetings. HD-TWG can call for a meeting on its members, as deemed necessary.

XII. PENALTY CLAUSE

Any acts or omissions contrary to this policy shall be dealt with in accordance with the 2017 Comprehensive BJMP Administrative Disciplinary Machinery.

XIII. SEPARABILITY CLAUSE

If any parts hereof are declared invalid or unconstitutional, the remaining part of the provisions not otherwise affected shall remain valid and subsisting.

XIV. REPEALING CLAUSE

All circulars or issuances which are inconsistent with this policy are hereby rescinded or modified accordingly.

XV. EFFECTIVITY

This Circular shall take effect after fifteen (15) days from filing a copy thereof at the University of the Philippines Law Center in consonance with Sections 3 and 4, Chapter 2, Book VII of Executive Order No. 292, otherwise known as "The Revised Administrative Code of 1987."

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Assessment/Referral Form

ANNEX A

(To be accomplished by the HDO)

Name of Jail:_____
Region: _____

Requesting Party:
(Kindly put a check mark)
☐PDL ☐Family member

Name:

_____
Surname First Name Last Name

Crime Charged *(for PDL only)* : _____

Crim. Case No/s. *(for PDL only)* : _____

Complete Address: _____
_____

Relationship *(for family member only)* : _____
Contact number: _____

Assistance Requested	Brief Background/Details
(Kindly put a check mark) ☐Medical	
☐Educational	
☐Livelihood	
☐Burial	
☐Shelter	
☐Transportation	
☐Others *(Kindly specify)* : _____	

Assessed by:

_____
Help Desk Officer
Date:

Noted by:

_____
Warden
Date:

Remarks: _____
(If assistance requested could be addressed in jail level)

Reffered to:

_____
Name of Office/Agency

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_____
(Signature over printed name)
Date:

DATABASE OF ASSISTANCE

ANNEX B

Region:

Unit:

No.	Name of proponent	Unit (PDL or family member)	Age	Address	Contact details	Nature of assistance	Referred to	Referred by	Released date	Date received by the agency	Status/ Action taken

Prepared by:

Help Desk Officer
(Kindly indicate level)

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Certified Correct:

Chief, IWDS/IWDD/Welfare Mgmt. Div., DIWD
(For Jail/Regional/National level only)

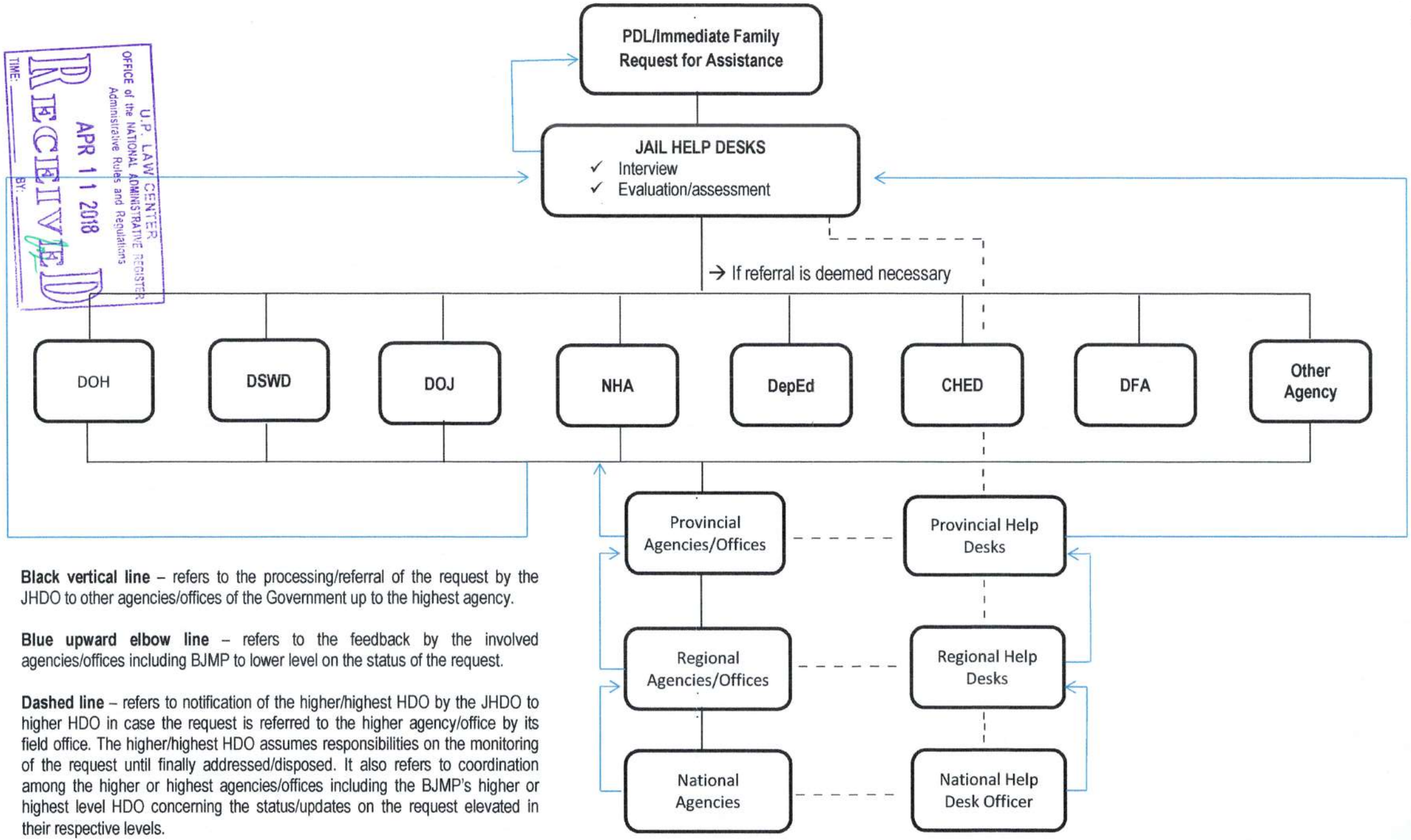
Noted by:

Warden/PA/Regional Director of the Jail Bureau/Director of DIWD

Annex C

ASSISTANCE PROCESS FLOW

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Black vertical line – refers to the processing/referral of the request by the JHDO to other agencies/offices of the Government up to the highest agency.

Blue upward elbow line – refers to the feedback by the involved agencies/offices including BJMP to lower level on the status of the request.

Dashed line – refers to notification of the higher/highest HDO by the JHDO to higher HDO in case the request is referred to the higher agency/office by its field office. The higher/highest HDO assumes responsibilities on the monitoring of the request until finally addressed/disposed. It also refers to coordination among the higher or highest agencies/offices including the BJMP's higher or highest level HDO concerning the status/updates on the request elevated in their respective levels.

Annex D

Letter Head

1st Indorsement

(Date)

Respectfully referred to ***(Name of Head of Agency/Office, Address)***, the herein attached Request for Assistance ***(date)*** from ***(Name of PDL/Family/Address)***.

Kindly take appropriate action and furnish this office a report on action/s taken within fifteen (15) working days upon receipt hereof.

Rank & Name of Head of Office
Designation

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